

UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
TAMPA DIVISION

MATTHEW AARON DAVIS,

Plaintiff,

v.

Case No. 8:24-cv-02907-KKM-NHA

STATE OF FLORIDA,

Defendant.

ORDER

The United States Magistrate Judge recommends denying the plaintiffs' motion to proceed *in forma pauperis* and dismissing his fourth amended complaint, both without prejudice. (Doc. 13). The deadline to object to the Magistrate Judge's Report and Recommendation has passed without either party lodging an objection. Considering the record, the Court adopts the Report and Recommendation.

After conducting a review of the findings and recommendations, a district judge may accept, reject, or modify a magistrate judge's Report and Recommendation. 28 U.S.C. § 636(b)(1). If a party files a timely and specific objection to a finding of fact by a magistrate judge, the district court must conduct a

de novo review with respect to that factual issue. *Stokes v. Singletary*, 952 F.2d 1567, 1576 (11th Cir. 1992). The district court reviews legal conclusions de novo, even in the absence of an objection. *See Cooper-Houston v. S. Ry. Co.*, 37 F.3d 603, 604 (11th Cir. 1994) (per curiam); *Ashworth v. Glades Cnty. Bd. of Cnty. Comm'rs*, 379 F. Supp. 3d 1244, 1246 (M.D. Fla. 2019).

In the absence of any objection and after reviewing the factual allegations and legal conclusions, I adopt the Report and Recommendation. I also direct the Clerk to strike the plaintiff's Fifth Amended Complaint, (Doc. 14), because it does not comply with Federal Rule of Civil Procedure 15(a).

Accordingly, it is **ORDERED**:

1. The Magistrate Judge's Report and Recommendation (Doc. 13) is **ADOPTED** and made a part of this Order for all purposes.
2. The plaintiff's Motion to Proceed In Forma Pauperis (Doc. 11) is **DENIED without prejudice** and his Fourth Amended Complaint (Doc. 10) is **DISMISSED without prejudice**. No later than May 2, 2025, the plaintiff must move to proceed *in forma pauperis* or pay the filing fee, and file an amended complaint. If he fails to do so or files another deficient complaint, his action will be dismissed with prejudice.

3. The Clerk is directed to **STRIKE** the plaintiff's Fifth Amended Complaint (Doc. 14) from the docket.

ORDERED in Tampa, Florida, on April 2, 2025.


Kathryn Kimball Mizelle
United States District Judge